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June 14, 2021

Reply Letter to State of New York Department of Public Service Staff Statement in Support of the Joint Proposal in Case 19-G-0309 – Proceeding on Motion of the Commission as to the Rates, Charges, Rules and Regulations of The Brooklyn Union Gas Company d/b/a National Grid NY for Gas Service Case
19-G-0310 – Proceeding on Motion of the Commission as to the Rates, Charges, Rules and Regulations of KeySpan Gas East Corporation d/b/a National Grid for Gas Service

In Staff's June 2, 2021 Statement in Support of the Joint Proposal (pg 12), they refer to the Long-Term Capital Capacity Projects, including the vaporizers at the Greenpoint LNG facility, saying, "The Companies' asserted that these projects are necessary." They continue: "Staff also included these projects in its recommended capital expenditure budgets. This reflects Staff's judgment that the projects are indeed needed."

Also, when referring to the new position of "Independent" Consultant (pg 12), they specify that the Independent Consultant will be working "at the direction of Staff."

When Staff claims the Independent Consultant's investigation will be at their direction, and Staff has already supported The Companies' claims of need in litigation, how are we to trust that this Independent Consultant will come to any conclusion other than one that supports the Long Term Capital Capacity Projects? The Consultant is independent of the Companies, but under the authority of Staff, who have publicly supported the Companies' claims. This independence seems a distinction without a difference, and it is hard to have faith that any conclusion other than a confirmation of need would be forthcoming.

Staff also notes (pg 16), pointedly, that, since they are not responsible for permitting nor licensing of the Long-Term Capital Capacity Projects ("the Commission's adoption of the Joint Proposal only authorizes cost recovery through rate mechanisms. Indeed, other state agencies and entities do have permitting authority regarding the Long-Term Capital Capacity Projects, including the DEC, and various agencies of the City of New York."), their role is only to authorize cost recovery. Essentially, they say "not on us," even though they are the ultimate gateway through which these projects must pass. They state that this "Joint Proposal presents the Companies with aggressive targets, thus at least setting KEDNY and KEDLI on a path to avoiding the need for similar infrastructure in the future."

"At least."

This is a jaw-dropping abdication of responsibility in THIS three year (+ one year stay-out) period. The climate timeline says we have less than a decade left to avoid the worst impacts of a heating planet, and instead we hear this agency, tasked with supporting the State's climate law, give this pallid offering toward some sort of future achievement. We simply cannot afford to continue an expansion of fossil fuel infrastructure, justifying it with the hope that by turning the ocean liner toward an unspecified future path we will avoid another iceberg. Quoting Asad Rehman, "They can see that our house is on fire, and yet, frankly, they're still discussing what color to paint the door."